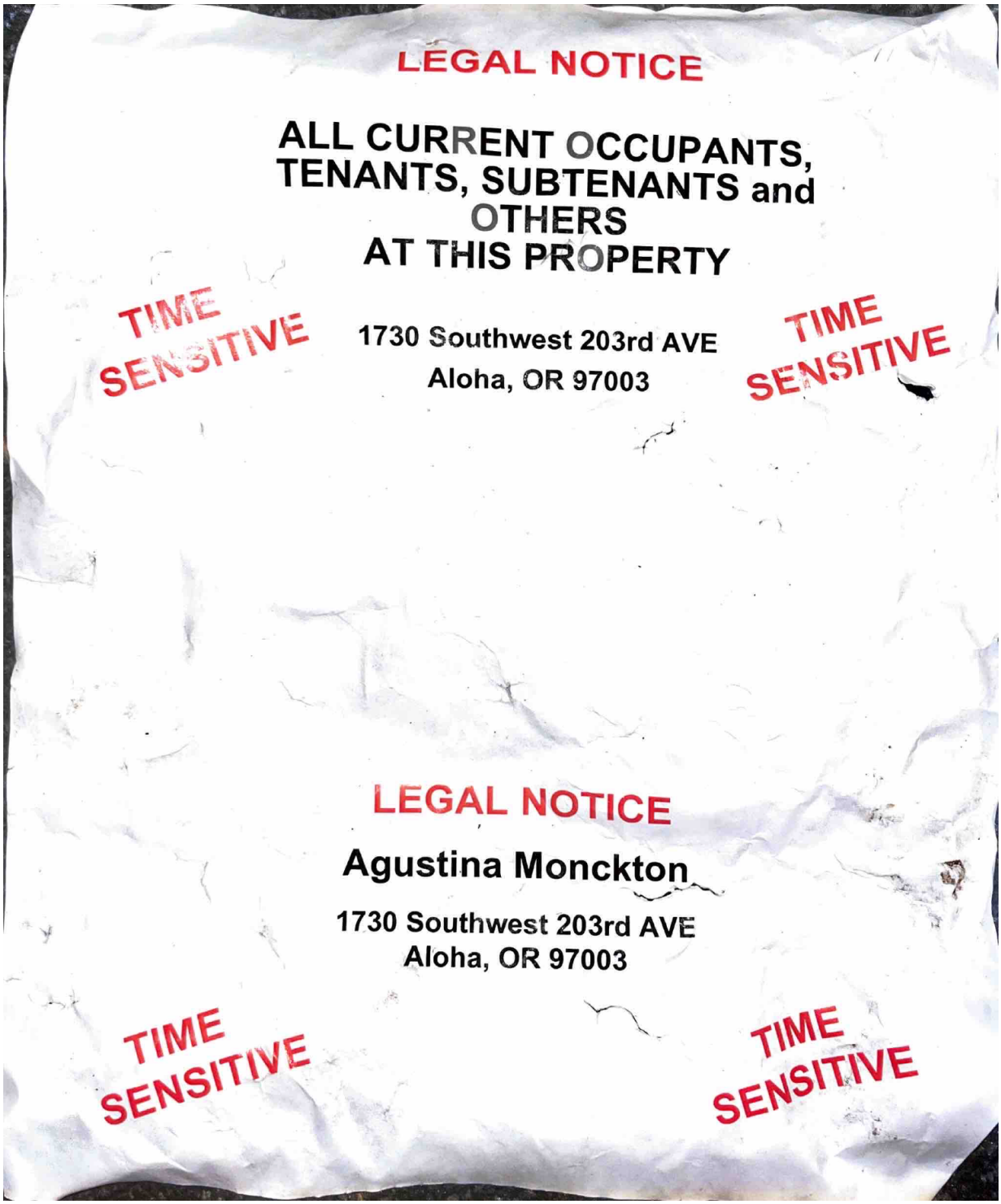
203rd Aldridge Pite 1/8/24

On 1/8/24 the attached notice was posted on the door at 1730 SW 203rd Ave. demanding the current occupants contact Aldridge Pite within 24 hours. The language appeared intentionally intimidating, implying that the occupants must vacate immediately) referencing a ten day post sale requirement after a nonjudicial foreclosure but doesn't apply to tenants with leases nor to judicial sales.

Notice Jan 10 2024



203rd Bona Fide Tenant

Notice posted January 8, 2024

TIME SENSITIVE
SENSITIVE
SENSITIVE

TIME SENSITIVE
TMI E
LEGAL NOTICE
ALL CURRENT OCCUPANTS, TENANTS, SUBTENANTS and OTHERS
AT THIS
PROPERTY
1730 Southwest 203rd AVE Aloha, OR 97003
LEGAL NOTICE
Agustina Monckton.
1730 Southwest 203rd AVE Aloha, OR 97003
TIME

NOW, THEREFORE, ni consideration of hte usm paid that the Defendant had on or about July 21, 206, the d had thereafler, ni hte folpwing described real property:
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ANDSECTIONS2OT DOES NOT ALLOW USE OF THE PROPERTY
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AND 17, CHAPTER LEG
CAPRICE MASSE
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Deputy Todd Ehlen
STATE OF OREGON
County of Washington
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AND 17, CHAPTER LEG
CAPRICE MASSE
CoP
Deputy Todd Ehlen
STATE OF OREGON
County of Washington
This inst ument was acknowledgf as Sheriff of Was By Todd Ehlert, Deputy for Pr
Notary 1
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SHERI BED
WASHINGTON COUNTY SHER: F" 215 SW ADAMS ALINUE HILLSBORO, ORGON 97123
DEUTSCHE BANK TRUST COMP AMERICAS, AS TRUSTEE FOR RES ACCREDIT LOANS, INC., MORTG ANY BACKED PASS-THROUGH CER DENTIAL SERIES 2006-QS' AGE ASSET.
Grantor:
Grantee:
SPACE RESERVED FOR RECORDERS' USE
JERPAR fIFICATES
&DRIVE
5720 PREMI
H, FL 33407 WEST PALM BEA
After recording return to:
requested otherwise send al tax statements to:
The true and actual consideration for this transfer is $455,670.00
This Ded si issued on December 14, 2023, by and between Pat Garrett, Sheriff of Washington County, Oregon, hereinafter caled hte grantor, and Deutsche Bank Trust Company Americas, As Truste For Residential Acoredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series 2006-QS 14; here inafter caled the grantee.
nI na action ni the Circuit Court of hte State of Oregon for Washington County, where DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, INC., MORTGAGE ASET- BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14 was plaintif(s) and AGUSTINA L. MONCKTON; GERALD G. MONCKTON, JR.; MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC.; MILLENNIA MORTGAGE CORPORATION; TURNING LEAF HOMES LLC, SHADOW WOODS HOMEOWNERS ASSOCIATION; OCCUPANTS OF THE PROPERTY was defendant(s, ajudgment was

entered against hte defendant(s). Folowing that judgment, the court issued a Writ of Execution ni Foreclosure which ordered the sale of the property, Pursuant ot which on June 8, 2023 the defendant's interest ni the real property described below was sold at public auction, subject ot redemption, ni the manner provided by law, for the sum of $455,670.00 ot Deutsche Bank Trust Company Americas, As Trustee For Residential Accredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series 2006-QS14, who was the highest bidder.
The real property has not ben redemed from hte sale, and hte time ofr doingos has now expired. The grante si ht owner and holder of the Certificate of Sale The grantee has delivered the certificate to g e rantor, or has presented a court order ot hte grantec ordr ing issuance of th
e deed.

1)
NOTICE TO VACATE AND/OR NOTICE TO RESIDENTIAL TENANTS OF CHANGE IN OWNERSHIP FOLLOWING FORECLOSURE SALE
TO: AGUSTINA MONCKTON AND AL OTHER OCCUPANTS, TENANTS, OR SUBTENANTS OF THE PROPERTY LOCATED AT: 1730 WS 203RD AVE, BEAVERTON, OR 97003-2164
NOTICE TO PREVIOUS OWNER OR AN OCCUPANT :
NOTICE SI HEREBY GIVEN that the above-referenced property was purchased at either a(1) judicial foreclosure sale ni accordance with ORS 8 and you must vacate immediately under ORS 105.115 OR; (2) aTrustee Sale ni accordance with chapter 86 of the Oregon Revised Statutes and title ot the property has ben duly perfected. If you are hte previous owner or an occupant who is not abona fide tenant of the property that was purchased by the new owner Deutsche Bank Trust Company Americas, As Trustee for Residential accredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series 2006-QS14 on June 8, 2023, pursuant to ORS 86.782, the purchaser at the trustee's sale si entitled to possession of the property on the tenth (10*) day after the sale. You are required ot vacate and surrender possession of the property on or before the 10" day following the sale.
NOTICE TO BONA FIDE RESIDENTIAL TENANTS: NOTICE TO VACATE AND TERMINATION OF LEASE

The property you live ni has gone through foreclosure and has anew owner. The contact information for the new owner or owner's representative is Aldridge Pite, LLP at 858-750-7600 or UDstatus@aldridgepite.com
fI you are bona fide tenant of hte former owner of hte Property, and not the spouse, child, or parent of the former owner, you may be authorized ot remain ni the Property temporarily or until your lease ends, before eviction proceedings are initiated. You must contact us immediately ot let us know if you are a tenant and give us proof, such as a COPY of your lease or COPIES of rent receipts within the next 24 hours. If you fail ot contact us immediately with proof of a lease and payments, the eviction wil proceed.
2) IMPORTANT NOTICE TO SERVICEMEMBERS AND THEIR DEPENDENTS PROTECTIONS UNDER THE SERVICEMEMBERS CIVIL RELIEF ACT: Servicemembers no "active duty" or "active service," or adependent of such aservicemember, may be entitled ot certain legal protections, including eviction protection, pursuant to the Servicemembers Civil Relief Act ("SCRA", 50 USC Ap. $§ 50let seq., sa amended, and, possibly certain related State law.
•Who may eb entitled ot Legal Protections under the SCRA:
• Active duty members of the Army, Navy, Air Force, Marine Corps, Coast Guard;
AP File Number: 1013-2990A

• Active service members of hte commissioned corps of the National Oceanic and Atmospheric Administration;
• Active service members of the commissioned corps of the Public Health Service;
• Al Reserve personnel (Army, Navy, Ari Force, Marine Corps, Coast Guard) when on active duty.
• United States citizens serving with hte armed forces of anation alied with the United States ni the prosecution of a war or military action;
Members of the Army National Guard and Air National Guard when called to active duty or duty under 32 USC §502 for more than 03 consecutive days by hte President or Secretary of Defense for hte purpose of responding ot adeclared national emergency; and
•
Their spouses and dependents.

Servicemembers and dependents with questions about the SCRA should contact their unit's Judge Advocate, or their installation's Legal Assistance Officer. Amilitary legal assistance office locator for al branches of the Armed Forces is available at https://legalassistance.law.af.mil/ Military OneSource is the U.S. Department of Defense's information resource. If you are listed a s entitled to legal protections under the SCRA, please go. t o https://www.militaryonesource.mil/benefits/servicemerbers-civil-relief-act or call 1-800-342- 9647 (toll free from the United States) for more information. Dialing instructions for areas outside the United States are provided at the website.
If you are a protected servicemember, or a dependent of a protected servicemember, you should contact Aldridge Pite, LLP Evictions Department at (858) 750-7600 immediately to discuss your status under the SCRA. If you have any questions please contact our office at (858) 750-7600 or email at UDstatus@aldridgepite.com.
IT IS UNLAWFUL FOR ANY PERSON TO TRY TO FORCE YOU TO LEAVE YOUR DWELLING UNIT WITHOUT FIRST GIVING YOU WRITTEN NOTICE AND GOING TO COURT TO EVICT YOU. FOR MORE INFORMATION ABOUT YOUR RIGHTS, YOU SHOULD CONSULT A LAWYER. If you believe you need legal assistance, contact the Oregon State Bar ta http://www.osbar.org or (800) 452-7636 and ask for the lawyer referral service. If you do not have enough money ot pay a lawyer and are otherwise eligible, you may be able to receive legal assistance for free. For County-by-County information, please visit: http://www.lawhelp.org/program/694/RTF1.cfm?pagename=Locations. This notice is inclusive of the notice required under O.R.S. § 86.782.
Dated: January 5, 2024
By: ALDRIDGE PITE, LLP 858-750-7600
UDstatus@aldridgepite.com Our File Number: 1013-2990A
AP File Number: 1013-2990A

NOTICE
Agustina Monckton INDIVIDUALLY
1730 Southwest 203rd AVE Aloha, OR 97003
LEGAL
LEGAL NOTLE
ALL CURRENT OCCUP NTS, TENANTS, SUBTENANTS and OTHERS AT/

HIS PROPERTY
130 Southwest 203rd AVE Aloha, OR 97003
TIME
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TO:
NOTICE TO VACATE AND/OR NOTICE TO RESIDENTIAL T ENANTS OF CHANGE INOWNERSHIPFOLLOWING FORECLOSURI SALE
AGUSTINA MONCKTON AND ALL OTHER OCCUPANTS, TENANTS, OR SUBTENANTS OF THE PROPERTY LOCATED AT: 1730 SW 203RD AVE, BEAVERTON, OR 97003-2164
NOTICE TO PREVIOUS OWNER OR AN OCCUPANT
at either NOTICE SI HEREBY GIVEM it the above-referenced property was purchased
under a(1) judicial foreclosure sale ni accorda. : with ORS 8 and you must vacate immediatel
y Statutes ORS 105.115 OR; (2) aTrustee Sale ni ac. dance with chapter 86 of the Oregon Revised S
¿cupant and title ot the property has been duly perfeted. fI you are the previous owner or an on
Bank who si not abona fdie tenant of the property thet was purchased by the new owner Deutsche
Trust Company Americas, As Trustee for Residential accredit Loans, Inc., Mortgage Asse:x-Backed Pas-Through Certificates Series 2006-QS14 ? June 8, 2023, pursuant ot ORG 86.782, the purchaser at the trustee's sale si entitled ot possession of the property on the ter t h (10") day after
the sale. You are required ot vacate and surrender possession of the property c ni or before the 10th day following the sale.
NOTICE TO BONA FIDE RESIDENTIAL TENANTS: NOTICE TO VACATE AND TERMINATION OF LEASE
The property you live ni has gone through foreclosure and has a new owner. The contact information for the new owner or owner's representative si Aldridge Pite, LLP at 858-750-7600 or UDstatus@aldridgepite.com
If you are a bona fide tenant of the former owner of the Property, and not the spouse, child,

or parent of the former owner, you may be authorized to remain ni the Property temporarily or until your lease ends, before eviction proceedings are initiated. You must contact us immediately ot let us know if you are atenant and give us proof, such as aCOPY of your lease or COPIES of rent receipts within the next 24 hours. If you fail ot contact us immediately with proof of a lease and payments, the eviction wil l proceed.
2) IMPORTANT NOTICE TO SERVICEMEMBERS AND THEIR DEPENDENTS PROTECTIONS UNDER THE SERVICEMEMBERS CIVIL RELIEF ACT: Servicemembers on certain legal protections, incl or a dependent of such a servicemember, may be entitled to "active duty" or "active service," Relief Act ("SCRA"), 50 uding eviction protection, pursuant to the Servicemembers Civil USC Ap. § 501et seq., as amended, and, possibly certain related State "law.
Who may eb entitled ot Legal Protections under the SCRA:
• Active duyt members of hte Army, Navy, Ari Force, Marnie Corps, Coast Guard; AP File Number: 1013-2990A

SHERIFF'S DEED
Grantor:
WASHINGION COUNTY SHERIFF'S OFFICE 215 SW ADAMS AVENUE HILLSBORO, OREGON 97123
Grantee:
DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, INC., MORTGAGE ASSET- BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14
5720 PREMIER PARK DRIVE
WEST PALM BEACH, FL 33407
After recording return to:
Until requested otherwise send all tax statements to:
The true and actual consideration for this transfer is $455,670.00
SPACE RESERVED FOR RECORDERS' USE
This Ded is issued on December 14, 2023, by and between Pat Garret, Sheriff of Washington County, Oregon, hereinafter caled the grantor, and Deutsche Bank Trust Company Americas, A' s Trustee For Residential Acoredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series:2006-Q$14, hereinafter called the grantee.
In an action ni hte Circuit Court of the State of Oregon

for Washington County, where DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTE FOR RESIDENTIAL ACCREDIT LOANS, INC.; MORTGAGE ASSET- BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14 was plaintiff(s) and AGUSTINA L. MONCKTON; GERALD G. MONCKTON, JR.; MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC.; MILLENNIA MORTGAGE CORPORATION; TURNING LEAF HOMES LLC; SHADOW WOODS HOMEOWNERS ASSOCIATION; OCCUPANTS OF THE PROPERTY was defendants), ajudgment was entered against the defendant(s). Following that judgment, the court issued a Writ of Execution in Foreclosure which ordered the sale of the property. Pursuant ot which on June 8, 2023 the defendant's interest ni the real property described below was sold at public auction, subject to redemption, ni the manner provided by law, for the sum of $455,670:00 ot Deutsche Bank Trust Company Americas, As Trustee For Residential Accredit Loans, Inc., Mortgage Asset-Backed-Pass -Through Certificates Series 2006-QS14, who was the highest bidder

The real property has not ben redemed from hte sale, and the mit e for doing os has now expired. The grantee si hte owner and holder of hte Certificate of Sale. The grantee has delivered hte certificate ot grantor, or has presented acourt order to the grantor ordering issuance of the deed.

N O W , T H E R E F O R E , n i c o n s i d e r a t i o n f o h e t u ms p a d i f o r h t e r e a l p r o p e r t y , g r a n t o r c o n v e y s o t g r a n t e e a l l f o h e t i n t e r e s t htat het Defendant had no or about Juyl 21, 206, het date fohet Ded of Trus,t nad aslo hte interest htat hte Defendant had thereafter, ni hte folowing described real property:

Lot 165, SHADOW WOD NO. 5,ni hto Counyt of Washington, State foOregon.

The property is commonly known as:

1730 Southwest 203rd Avenue
ALOHA, OREGON

BEFORE SIGNING OR ACCEPTING THSI INSTRUMENT, THE PERSON TRANSFERRING FE TILE SHOULD INQUIRE ABOUT THE PERSONS' RIGHTS, FI ANY, UNDER ORS 195.300, 195.301 AND 195.305 OT 195.336 AND SECTIONS 5TO 1, CHAPTER 424, OREGON LAWS 207 AND SECTIONS 2TO 9AND 17, CHAPTER 85,OREGONLAWS209, ANDSECTIONS2OT,7CHAPTER,8OREGONLAWS2010. THSI INSTRUMENT

DOES NOT ALOW USE OF THE PROPERTY DESCRIBED NI THIS INSTRUMENT NI VIOLATION OF APLICABLE LAND USE LAWS AND REGULATIONS. BEFORE SIGNING RO ACCEPTING THSI INSTRUMENT, THE PERSON ACQUIRING FE TITLE TO THE PROPERTY SHOULD CHECK WITH THE APPROPRIATE CITY OR COUNTY PLANNING DEPARTMENT OT VÉRIFY THAT THE UNTI OF LAND BENIGTRANSFEREDSIALAWFULYESTABLISHEDLOTROPARCEL, SADEFNIEDNIORS920.10RO 215.010, TO VERIFY THE APPROVED USES OF THE LOT OR PARCEL, TO DETERMINE ANY LIMITS ON LAWSUTIS AGANIST FARMNIG OR FOREST PRACTICES, SADEFNIEDNI ORS 30.930, ANDOT NIQURIE ABOUT THE RIGHTS OF NEIGHBORING PROPERTY OWNERS, IF ANY, UNDER ORS 195.300, 195.301 AND 195.305 TO 195.336 AND SECTIONS 5 TO 11, CHAPTER 424, OREGON LAWS 2007, AND SECTIONS 2 TO –9 AND. 17, CHAPTER 855, OREGON LAWS 2009, AND SECTIONS 2TO 7, CHAPTER 8, OREGON LAWS 2010.
CAPRICE MASSEY, Sheriff of Washington County, Oregon
•Deputy Todd Ehlert
STATE OF OREGON County of Washington
This instrument was acknowledged before me on DIe 14 2093
By Todd Bhlert, Deputy for Pat Garret, sa Sherif of Washington County.
OFFIGIAL STAMP TANYA JAY HUGHES N LIC –OREGO NOTARYPUB NO. 908161 COMMISSION
24 MY COMMISSION EXPIRES MAY 11, 20
N otaryFilicfortheSigofOreon
M y commission expires B
a •11,0004

RECORDING COVER SHEET PER ORS 205.234
PRES COVER SUELTHAS BEN PREPARED BY MIEPERSON PRESENTING THE ATTACHED INSTRUMENT FOR RECORDING ANYERRORSNI THISCOVERSHETDOESNOTAFECTTHE TRAVSACTION(S) CONTAINEDNI THE INSTRUMENT ITSELF.
AFTER RECORDING RETURN TO: McCarthy & Holthus. LLP
920 SW Erd Arc. Ist Floor •Portlaud.OR 97204
M&H File No.: OR–16–739403–JUD
1. TITLE OF THE TRANSACTION (ORS 205.234a) SHERIFF'S DEED
•
2. Direct Party/Grantor(s) and Address:(ORS 205.160)
Washington Count Sherif (OR)
215 SW ADAMS. MS 23
Hillsboro. OR 97123

Washington County. Oregon
2023-052006 D-DS
Stn=19
5 GALLARDO
12/19/202311:21:32 AM $15.00 S11.00 $5.00 $60.00
$91.00 .1 joe Nelson. Director of Assessment and Taxation
and Ex-Oficio County Clerk for Washington County. Oregon:
do hereby certify tnat
the within instrument of writing was received and recorded
ni the
book of records of sald county.
Joe Nelson. Director of AsSesment and axation. Ex-Officio
County Clerk
3. Indirect Party/Grantee(s)/Plaintiff and Address:(ORS
205.1251 aand 205.160)
DEUTSCHE BAVA TRUST COMPAVY AMERICAS. AS TRUSTEE FOR
RESIDENTIAL ACCREDIT LOANS. INC. MORTGAGE ASSET-BACKED
PASS-THROUGH CERTIFICATES SERIES 2006-QS1+
C/O PHH Mortyage Corporation
P.O. B o x24605
West Palm Beach. LF 33416
.4 Trüstor(s)/Defendant(s) and Address:
TroutmanLawFir .P.C.
TedA. Troutman
5075 SW Griffith DrSte 220
Beaterton. OR 97005
Annika Eriksson
1730 Southwest 203rd Avenue
Aloha. OR 97006
Annika Eriksson
1730 SW 203rd Arenue Bearerton. OR 97003
Mortgage Electronic Registration Systems. Inc. 1209 V.
Orange St
Wilmington. DE 19801
c/o Sucretar of State
Millemia MoutgageCorporation 255 Capitol St. NE. Ste 151.
Salem. O R 97310
JPMorgan Chase Bank. N.A 1111 PolarisParkway Columbus. OH
43240
Turning Leaf Homes LLC PO. Box 68480
Portland. OR 97268
Shadow Woods Home Owners Association c/o Michael Johnson
Shadow Woods Home Owners Association c/o Michael Johnson

P.O Box 6313
Aloha.OR47007
Occupants of the Proporty 1730 SW 203rd Ave Aloha. OR97006
TRUE AND ACTLAL CONSIDERATION PAID (ORS 93:030)
$ 5465.670.00
SEND TAN STATEMENTS TO
DFUTSCHE BANK TRUST COMPAVY AMERICAS. AS TRUSTEF FOR RESIDENTIAL ACCREDIT LOINS INC. MORTGAGE ASSET-BACKED PASS-THROUGH CERTIFICATES SF.RIFS 2006-QS14
C/O PH Morteage Corporation, Atention: Vault $720 Premier Park Drvie. Wust Paml Beach. Fl. 39407
:7 Il this instrument si being ReRecorded, complete hte folowing statement: O(RS 205.244)
Being Re-Recorded to correct Previously recorded as Document No.

The notice is dated January 5, so the 24 hour period had passed, but having received it on the 9th it seemed within a reasonable time to send an email to the one on the notice on January 11, entitled “File Number 1013-2990A”:

Dear Counsel,

I am writing regarding the quiet title lawsuit I filed on December 7, 2023 in the Washington County Circuit Court challenging the purported ownership of your client over the property located at 1730 SW 203rd Ave. in Beaverton, Oregon. The case is styled Annika Eriksson vs. Deutsche Bank Trust Company Americas, as Trustee for Residential Accredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series 2006-QS14, et al. Service of the complaint is forthcoming.

Please be advised that a Notice of Lis Pendens pertaining to this litigation has been recorded under document number 2023-050594 in the Washington County property records notifying all parties of the pending litigation.

I currently maintain lawful possession of 1730 SW 203rd Ave. and expect my occupancy rights to remain undisturbed, with statutory notice and due process afforded. I trust that your client will respect the authority of the court to ultimately determine ownership.

At this time, I represent myself pro se. Any documentation relating to my occupancy, such as termination notices or communications asserting a legal position, and all case-related communications shall occur exclusively in writing and be delivered via certified mail to 1730 SW 203rd Ave. I will acknowledge correspondence promptly upon receipt. Formal court filings shall adhere to procedural rules for e-filing or paper service.

I appreciate your attention to this matter and request that your client cease any actions to interfere with my possession of the premises until the court resolves this dispute. I look forward to the timely and just resolution of this case through the established legal system and procedures.

Thank you,

Annika Eriksson

I did not receive a reply until January 19 at 4:51pm. It read:

What is the court case number for your quiet title case?

Kindly,

Kimberly Hood
Attorney
Aldridge | Pite, LLP
9311 SE 36th St. #207
Mercer Island, WA 98040
Direct: 206-707-9603
Fax: (619) 590-1385
khood@aldridgepite.com

I replied almost immediately, without thinking, with the case number. She responded:

Thanks!

Followed swiftly by:

Annika, I don't see that this has been served on any party to the case. Until the case is served and the court has jurisdiction, the eviction will continue. Sabrina, please proceed.

Kindly,

Kimberly Hood
Attorney
Aldridge | Pite, LLP
9311 SE 36th St. #207
Mercer Island, WA 98040
Direct: 206-707-9603
Fax: (619) 590-1385
khood@aldridgepite.com

The timestamp on that email was 5:01pm Friday January 19.

I discovered on January 21 that the front door lock had been changed and a lockbox placed on the door.

Meanwhile, Donald Buckhout had the following exchange with Aldridge Pite:

Subject: Tenancy at 1730 SW 203rd Ave. (Your File Number 1013-2990A)

Dear Counsel,

I am writing in response to the notice posted at 1730 SW 203rd Ave. in Beaverton to inform you of my tenancy there. I have maintained occupancy throughout the ongoing legal proceedings over property ownership. As a bona fide tenant since January 2022, I am protected under the Protecting Tenants at Foreclosure Act and have the right to remain until the expiration of my lease in June 2024, barring proper 90 days' notice.

While I understand your client claims ownership after purchasing the property at a sheriff's sale, you are surely aware of the quiet title action contesting the validity of that sale. Proceeding with eviction prior to the resolution of the ownership dispute could be seen as taking the first steps toward premature termination, which could contravene my statutory protections depending on the outcome of the quiet title action. I therefore request that ownership be fully adjudicated before any steps are taken affecting my leasehold rights.

Please communicate through official legal channels. I appreciate your guidance in maintaining the status quo pending resolution and will contact you directly if any other tenant issues arise.

Thank you for your consideration.

Regards,
Don Buckhout

Don sent the above email to the address in the posted notice at 4:21 on January 12 and the following reply was received at 4:50pm on Jan 19:

Please send me a copy of your lease and proof of rental payments. In addition, please forward an identification, and utility bill.

Kindly,

Kimberly Hood
Attorney
Aldridge | Pite, LLP
9311 SE 36th St. #207
Mercer Island, WA 98040
Direct: 206-707-9603
Fax: (619) 590-1385
khood@aldridgepite.com

Don did not reply to the email as it was sent close to the end of the business day that Friday and it seemed prudent to seek legal advice regarding his rights in this situation, particularly how much, if any, personal information he should be required to submit to Aldridge Pite.

My concerns are as follows:

1. The notice posted on or about January 8 or 9 was not securely fixed to the door but was left subject to the elements and strewn across the yard.
2. The pages seemed to indicate that eviction was imminent, due to the judicial sale date of June 8 and a reference to the statute that terminates tenancies ten days after nonjudicial foreclosures. This was confusing and requires legal guidance to understand.
3. The only instructions in the notice were to get in touch with Aldridge spite within 24 hours. Since the notice was dated January 5 but not posted until the 8th at the earliest, both Don and I were well within reasonable timeframe for responding with our emails on the 11th and 12th, respectively. Aldridge Pite continued to draw out the timeline when they finally responded to our initial contact over a week later.
4. Kimberly Hood's casual email to me so near the close of the business day on Friday, asking for the case number of my quiet title action caught me off guard; after I sent her the case number, when she triumphantly declared that court jurisdiction has not yet been established, I then I realized she had

blatantly disregarded my request to send all further communications through certified mail.
5. When Ms. Hood wrote “the eviction may proceed” and as an aside to Sabrina: “please proceed”, this was clearly meant to intimidate and struck me as needless bullying.
6. I need to check with my own legal resources because MsHood may not be 100% correct regarding the jurisdiction of my quiet title claim; perhaps she does not realize that I recorded lis pendens in the Washington county land records on December 8, prior to the recording of Deutsche bank’s sheriffs deed on December 19.
7. On Sunday, Don and I saw that the deadbolt had been changed and a lockbox placed on the door.
8. While neither of us have been spending much time at 1730 SW 203rd Ave., we still have possessions there and return to check the mail, etc. Don was with me in Oregon City during the ice storm and we missed two certified letters from a private investigator which were addressed to All Occupants; this could represent an attempt to serve summons for an eviction but I have been keeping an eye on the Oregon Courts for cases filed against me or Don since we have both identified ourselves as occupants to Aldridge Pite. I would expect any official eviction process to name one or both of us explicitly.

The new deadbolt was fairly easy to remove and Don was able to secure the house and confirm that nothing else had been disturbed during the illegal entry. Here is the letter he sent to Kimberly Hood at Aldridge Pite on January 29 along with the text of each statute referenced.

Dear Ms. Hood,

I am writing regarding the unlawful lockout that occurred at 1730 SW 203rd Ave. in Beaverton, Oregon on or about January 21, 2024. I have maintained occupancy at this property as a bona fide tenant since December 2021 and had a reasonable expectation to occupy the premises undisturbed until resolution of the he ownership dispute currently pending in Washington County Circuit Court, Case No. 23CV50085. Notwithstanding the email exchange on the previous Friday regarding my lease, an individual acting on your or your client's behalf entered the property without providing the required 24-hour notice and proceeded to install a new deadbolt on the front door.

I must remind you that ORS 105.105 and 105.110 explicitly prohibit lockouts and ouster. The only legal means for removing a tenant from the property is through the involvement of a sheriff under a court order. ORS 90.322(8) states that a tenant can collect one month’s rent as damages if a landlord enters without notice. Additionally, ORS 90.375 provides that a landlord owes two months’ rent if they

disconnect utilities, change the locks, or seriously threaten to do those actions. As my monthly rent is $1,500, I am owed $1,500 x 3 months = $4,500 in damages as a result of this unlawful lockout on January 21, 2024.

I hereby demand payment of $4,500 within 10 days from the date of this letter, to be remitted by check made payable to Donald Buckhout and delivered to my address below. Failure to comply will leave me no choice but to pursue all available legal remedies. I also request that you refrain from any further contact with me regarding this property, unless through official court proceedings.

Sincerely,

Donald Buckhout
1730 SW 203rd Ave.
Beaverton, OR 97003

Hi Barb,

Thank you for checking in regarding my living situation at 1730 SW 203rd Ave. I want to ensure open communication and that the Shadow Wood HOA has accurate information during this ongoing legal dispute over ownership of the property.

I have filed a quiet title lawsuit in Washington County Circuit Court (Case No. 23CV50085) challenging Deutsche Bank's claim of ownership from a prior foreclosure suit. The HOA has been named as a defendant given its interest in the property. While I'm still serving summons as I amend my filing to include additional parties, I intend to maintain occupancy at 1730 SW 203rd Ave. until the court reaches a final ruling.

Please let me know if any other updates would be helpful as the legal process moves forward. I've attached a copy of my quiet title complaint and the Notice of Lis Pendens I recorded to keep the HOA informed.

Thank you for your role in maintaining accurate neighborhood records. I appreciate open communication during this dispute. Please contact me if you need anything else.

Regards,
Annika Eriksson
503-207-3379